



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 21 January 2020 and 11 judgments and / or decisions on Thursday 23 January 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 21 January 2020

Strazimiri v. Albania (application no. 34602/16)

The case concerns the detention of a mentally ill man since 2009 in a prison rather than a medical institution.

The applicant, Arben Strazimiri, is an Albanian national who was born in 1973. He has been detained since 2011 in Tirana Prison Hospital.

Mr Strazimiri was arrested in 2008 for attempted premeditated murder, but the Tirana District Court found that he could not be held criminally accountable for his actions because of paranoid schizophrenia and ordered compulsory inpatient treatment in a medical institution. He was first sent to Kruja Prison in 2009 and then transferred to Tirana Prison Hospital in 2011.

Since then the domestic courts have reviewed Mr Strazimiri's situation on several occasions, finding that he was still a danger to himself and to others and that his family were not capable of providing the appropriate conditions to look after him if he were released. The courts therefore ordered his continued compulsory inpatient treatment in a medical institution, which chiefly consists in him taking psychotropic drugs.

He challenged his continued detention in court in 2014, arguing that, since he was neither a convict nor detained pending trial, his placement in a penal institution was contrary to domestic law and that he should be held in a special medical institution, as ordered by the courts. He also complained that his medical treatment and the conditions of his detention were inadequate. Both complaints were dismissed as manifestly ill-founded. His appeals against those decisions have been pending before the Supreme Court since April 2015 and January 2016.

Similar complaints to the prosecuting authorities have also been unsuccessful.

Both the courts and the prosecuting authorities found in particular that until such time as specialised institutions for mentally ill individuals who were exempted from criminal responsibility and were subject to court-ordered medical treatment had been built, it was not contrary to the law for them to be placed in an establishment which had been adapted to their needs, such as the special wing of Tirana Prison Hospital.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 13 (right to an effective remedy) of the European Convention on Human Rights, Mr Strazimiri complains that the conditions of his detention, including the provision of medical care, are inadequate. He also makes a number of complaints under Article 5 §§ 1, 4 and 5 (right to liberty and security) of the Convention, namely that he was placed in a prison even though the courts had ordered his confinement in a medical institution, that he was not given the possibility to have the lawfulness of his detention decided speedily by a court and that domestic law did not provide him with an enforceable right to compensation.

Lastly, he complains under Article 14 (prohibition of discrimination) in conjunction with Articles 3 and 5 that he has been discriminated against because of his mental illness.

[Şamat v. Turkey \(no. 29115/07\)](#)

The applicants, Niyazi Şamat, now deceased, and Nuri Şamat, are Turkish nationals who were born in 1943 and 1946, respectively, and live in Istanbul.

The case concerns a dispute over forest boundaries.

Between 1982 and 1994 the applicants bought shares in a plot of land in Kemerburgaz, Istanbul.

The land had previously been the subject of proceedings against the former owner by the forest administration and the Treasury seeking to have his title deed annulled because the land was situated inside the Belgrade Forest, which had been declared a conservation area. The Land Registry Court dismissed the case, finding that the plot fell outside the forest's boundaries. The decision became final in 1979.

However, in 2003 the forest administration brought proceedings against the applicants to annul their title deed and to have the land registered in the name of the Treasury, based on a cadastral evaluation drawn up in 1985 finding that the land was inside the forest's boundaries.

The courts ultimately, in 2007, ruled in favour of the forest administration because the applicants had missed the 10-year time-limit to contest the conclusions of the 1985 cadastral evaluation. They rejected the applicants' argument that the status of the land had been conclusively determined in the decision of 1979 and should have the effect of *res judicata*.

Relying on Article 6 § 1 (right to a fair hearing), the applicants allege that the proceedings brought against them were in breach of the principle of legal certainty and that they had never been notified of the 1985 cadastral evaluation, in breach of the principle of adversarial proceedings.

Thursday 23 January 2020

[Adilovska v. North Macedonia \(no. 42895/14\)](#)

The applicant, Ajşe Adilovska, is a Macedonian/citizen of the Republic of North Macedonia who was born in 1963 and lives in Skopje.

The case concerns the dismissal of her claim to a plot of land belonging to her late father.

In 2004 Ms Adilovska brought a civil action for recognition of her title to her father's property. Her two sisters subsequently joined the proceedings.

The first-instance court granted the claim in 2004, but the judgment was overturned on appeal in 2013 and her claim was dismissed because of her lack of standing as she and her sisters were not the only legal heirs of their late father, who had five other children. The appeal court did not take into consideration the argument raised by the applicant's lawyer that the other potential legal heirs had no intention of joining the proceedings.

Relying on Article 6 § 1 (right to a fair hearing / access to court) and Article 1 of Protocol No. 1 (protection of property), Ms Adilovska complains about the domestic courts' dismissal of her claim without examining the merits.

[L.R. v. North Macedonia \(no. 38067/15\)](#)

The case concerns a child, L.R., a Macedonian/citizen of the Republic of North Macedonia, who has been in the care of State-run institutions since he was three months old and allegations of inadequate care and ill-treatment.

The application was lodged by the Helsinki Committee for Human Rights in Skopje (“the HCHR”) on his behalf.

L.R. was abandoned by his mentally ill parents after he was born in 2004. A social welfare centre was appointed as his guardian, which since then has ordered and arranged his placement in several State-run social care institutions. Growth delay was detected when he was one year old and, at the age of three and half, a team of hospital doctors diagnosed him with mental, physical (cerebral palsy) and speech disabilities.

On the basis of this diagnosis, L.R. was placed in June 2012 in the B.B.S. Rehabilitation Institute, an open-type State-run institution for physically disabled people. The institute, both before L.R.’s admission and throughout his stay during the next year and nine months, repeatedly voiced its concerns to the relevant authorities that it could not accommodate persons with mental disabilities, that it was understaffed and that its personnel were not qualified to communicate with L.R., who was deaf and unable to speak.

In November 2013 the Ombudsman visited the institute and found L.R. tied to his bed, which he revealed at a press conference presenting his annual report in June 2014.

Soon after the HCHR took up the applicant’s case and complained to the prosecuting authorities. The authorities went on to examine documents provided by the institute and the Ombudsman and hear oral evidence from the institute’s director and four of its employees. They established that L.R.’s placement in the institute was inappropriate and that he had occasionally been tied to his bed with a rope for “safety reasons”, namely to prevent him from running away and putting himself in danger. However, they found that there were no grounds to hold that a criminal offence had been committed because there had been no intent to subject the child to inhuman or degrading treatment. The complaint was thus rejected in 2014. The higher prosecuting authorities confirmed those findings in 2015.

In the meantime, the first-instance prosecutor had notified the prosecutor in the jurisdiction of the hospital which had made L.R.’s medical diagnosis in 2008 of a discrepancy between the finding that he was severely physically disabled, and his apparent real state of health as experienced by the institute. The subsequent investigation has produced no results.

L.R. was transferred to another institute in April 2014. A medical report since stated that he has a very low level of development, in particular owing to insufficient stimulation and timely treatment.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 13 (right to an effective remedy), L.R. complains that he was wrongly diagnosed as physically disabled, which led to his being placed in an institute which could not cater for his needs and to inadequate care and treatment amounting to neglect. He also complains that the investigation into his allegations was ineffective.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court’s online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 21 January 2020

Name	Main application number
Bezzina Wettinger and Others v. Malta	52673/15
Fudin v. Russia	66637/12
Idrisova v. Russia	19/16

Name	Main application number
Saidova and Others v. Russia	36963/09
Sukhonosova v. Russia	3945/10
Timerbulatova and Others v. Russia	44116/10
Vatsayeva and Others v. Russia	44658/12

Thursday 23 January 2020

Name	Main application number
Konnova v. Estonia	20496/17
Feilazoo v. Malta	22246/18
Holmes v. Malta	38161/15
Isarlov v. Russia	4493/07
Karovashkin and Aleksandrova v. Russia	36701/13
Diala v. Switzerland	35201/18
Golovko v. Ukraine	2053/09
Stryukov v. Ukraine	78484/11
Yuriy Koval v. Ukraine	35121/09

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.